
SERVICE OF PROCESS PLAN

Pigors v. McNeill et al. -- WDMI Case No. [TBD]

I. SERVICE VIA U.S. MARSHALS (IFP PRIVILEGE)

A. Legal Authority

Under 28 USC § 1915(d):

"The officers of the court shall issue and serve all process, and perform all duties in [IFP] cases."

Under FRCP 4(c)(3):

"At the plaintiff's request, the court may order that service be made by a United States marshal or deputy marshal or by a person specially appointed by the court."

Key Benefit: If IFP is granted, the U.S. Marshals Service will serve all Defendants at government expense. Plaintiff does not need to arrange or pay for service.

B. Process for Obtaining Marshal Service

1. File the Complaint and IFP Application.
 2. Upon grant of IFP, request that the Court order the U.S. Marshals to effect service.
 3. Provide the Clerk's office with:
 - Completed USM-285 forms (one per Defendant)
 - Sufficient copies of the Summons and Complaint for each Defendant
 - Known addresses for each Defendant
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II. FRCP 4 REQUIREMENTS PER DEFENDANT

A. Defendant McNeill -- Individual Capacity

FRCP 4(e) -- Service on an Individual

Method	FRCP Rule	Procedure
Personal delivery	4(e)(2)(A)	Deliver summons + complaint ..
Leaving at dwelling	4(e)(2)(B)	Leave with person of suitabl..
Agent authorized by appointm..	4(e)(2)(C)	Deliver to McNeill's authori..
Michigan state law methods	4(e)(1) + MCR 2.105(A)	Personal service or substitut..

Practical Considerations

- McNeill is sued in individual capacity -- must be served personally, not through the court.
- Service at the courthouse may be permissible if McNeill is personally served.
- The U.S. Marshals will handle logistics if IFP is granted.
- Address: 14th Judicial Circuit Court, Hall of Justice, 990 Terrace Street, Muskegon, MI 49442 (workplace; personal address may be needed for dwelling service).

Summons

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UNITED STATES DISTRICT COURT

WESTERN DISTRICT OF MICHIGAN, SOUTHERN DIVISION

SUMMONS IN A CIVIL ACTION

To: HON. JENNY L. McNEILL (Individual Capacity)

[ADDRESS]

A lawsuit has been filed against you. Within 21 days after service of this summons on you (not counting the day of service), you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure.

[Standard summons language per FRCP 4(a)]

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B. Defendant Watson -- Individual

FRCP 4(e) -- Service on an Individual

Method	FRCP Rule	Procedure
Personal delivery	4(e)(2)(A)	Deliver summons + complaint ..
Leaving at dwelling	4(e)(2)(B)	Leave with person of suitabl..
Michigan state law methods	4(e)(1)	Per MCR 2.105(A)

Practical Considerations

- Watson is a private individual; serve at her residence.
- If Watson has an attorney of record in the state case, consider serving through counsel (though not technically required for a new federal action).
- Address: [Watson's last known address -- per state court records]

Summons

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To: TIFFANY A. WATSON

[ADDRESS]

A lawsuit has been filed against you. [Standard FRCP 4(a) summons]

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C. Defendant Barnes -- Individual Capacity

FRCP 4(e) -- Service on an Individual

Method	FRCP Rule	Procedure
Personal delivery	4(e)(2)(A)	Deliver summons + complaint ..
At dwelling/usual abode	4(e)(2)(B)	Leave with suitable person a..
Agent authorized by law	4(e)(2)(C)	Michigan attorney registrati..

Michigan state law methods	4(e)(1)	Per MCR 2.105(A)
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Practical Considerations

- Barnes is an attorney -- can be served at her office address listed with the State Bar of Michigan.
- Address: [Per State Bar of Michigan registration -- P55406]

Summons

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To: PAMELA BARNES (State Bar No. P55406) (Individual Capacity)
[OFFICE ADDRESS per State Bar registration]

A lawsuit has been filed against you. [Standard FRCP 4(a) summons]

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D. Defendant Muskegon County -- Municipal Corporation

FRCP 4(j)(2) -- Service on a Local Government Entity

Service is accomplished by "delivering a copy of the summons and of the complaint to its chief executive officer" or by "serving a copy of each in the manner prescribed by that state's law for serving a summons or like process on such a defendant."

Method	FRCP Rule	Procedure
Chief executive officer	4(j)(2)(A)	Serve the County Administrat..
County Clerk	Michigan law	Serve the Muskegon County Cl..
Prosecuting Attorney	Michigan law	Serve the Muskegon County Pr..

Practical Considerations

- Best practice: Serve both the County Clerk AND the County Administrator.
- Under Michigan law (MCL 600.1932), service on a county is made upon the county clerk.
- County Clerk Address: Muskegon County Clerk, 990 Terrace Street, Muskegon, MI 49442

- County Administrator: [Verify current administrator name and address]

Summons

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To: MUSKEGON COUNTY

c/o County Clerk

990 Terrace Street

Muskegon, MI 49442

A lawsuit has been filed against you. [Standard FRCP 4(a) summons]

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E. Defendant 14th Judicial Circuit Court, FOC

FRCP 4(j)(2) -- Service on Government Entity

Method	FRCP Rule	Procedure
Chief executive/officer	4(j)(2)(A)	Serve the Chief Judge or Cou..
Michigan law	4(j)(2)(B)	Per MCR 2.105(G)

Practical Considerations

- The FOC is an arm of the circuit court -- consider whether it is a separate entity or part of the County.
- If part of the County, service on the County may suffice.
- If treated as a separate entity, serve the FOC Director.
- Address: Friend of the Court, 14th Judicial Circuit, 990 Terrace Street, Muskegon, MI 49442

Summons

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To: 14TH JUDICIAL CIRCUIT COURT, FRIEND OF THE COURT OFFICE

c/o FOC Director

990 Terrace Street
Muskegon, MI 49442

A lawsuit has been filed against you. [Standard FRCP 4(a) summons]

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III. SERVICE TIMELINE

FRCP 4(m) -- 90-Day Service Deadline

Defendant	Summons Issued	Service Deadline (90..	Method
McNeill	[Filing date]	[Filing + 90 days]	U.S. Marshal -- pers..
Watson	[Filing date]	[Filing + 90 days]	U.S. Marshal -- pers..
Barnes	[Filing date]	[Filing + 90 days]	U.S. Marshal -- pers..
Muskegon County	[Filing date]	[Filing + 90 days]	U.S. Marshal -- Coun..
14th Circuit FOC	[Filing date]	[Filing + 90 days]	U.S. Marshal -- FOC ..

IMPORTANT: Under FRCP 4(m), if service is not accomplished within 90 days, the court may dismiss the action without prejudice or order service within a specified time. Under IFP, the Marshals handle service -- but Plaintiff should follow up to ensure timely completion.

IV. USM-285 FORMS

Required Information for Each Form

Complete one USM-285 (Process Receipt and Return) for each Defendant:

Field	Content
Plaintiff	Andrew J. Pigors
Defendant	[Individual defendant name]
Civil Action No.	[To be assigned]
County	Muskegon
Type of Process	Summons and Complaint

Number of Process	[Number of copies]
Name of Individual to be Served	[Full name]
Address	[Service address]
Special Instructions	[If any -- e.g., "Individual capacity only"]

V. POST-SERVICE ACTIONS

1. File Proof of Service (FRCP 4(l)): The U.S. Marshals will file proof of service. Verify that proofs are filed for all Defendants.
 2. Monitor Response Deadlines:
 - Individual Defendants: 21 days to answer or file FRCP 12 motion.
 - Government entities: 60 days per FRCP 12(a)(2).
 3. Default Judgment (FRCP 55): If any Defendant fails to respond, move for entry of default and default judgment.
 4. Waiver of Service (FRCP 4(d)): Consider sending waiver of service requests first -- Defendants who waive get 60 days to respond (instead of 21) and Plaintiff saves service costs. However, under IFP, costs are not an issue.
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VI. SERVICE CHECKLIST

- ☐ IFP Application filed and granted
 - ☐ Court issues summons for each Defendant
 - ☐ USM-285 forms completed for each Defendant
 - ☐ Sufficient copies of Complaint provided to Clerk
 - ☐ U.S. Marshals instructed to serve all Defendants
 - ☐ Follow up with Marshals within 30 days to verify service progress
 - ☐ File proof of service as proofs are returned
 - ☐ Calendar response deadlines for each Defendant
 - ☐ Monitor for any Defendant who fails to respond timely
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Service Plan Date: 2026-03-04

Status: READY -- Pending IFP approval and case filing